IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE, INDUSTRIAL AND LABOUR DIVISION 2 HELD IN ACCRA ON THURSDAY THE 30TH DAY OF JULY 2025 BEFORE HER LADYSHIP JUSTICE ANANDA J. AIKINS (MRS.) JUSTICE OF THE HIGH COURT.

SUIT NO. GJ/1802/2019

JOSEPH MARQUAYE **PLAINTIFF**

VRS

COURAGE K. AGBANA **DEFENDANT**

COUNSEL FOR THE PLAINTIFF: RICHMOND NUMBO SAAKA ESQ.,

COUNSEL FOR THE DEFENDANT: PATRICK POKU-MOBOAH ESQ.,

JUDGMENT

INTRODUCTION

Per his writ of summons and statement of claim filed on the 29th August, 2019, the plaintiff sought the following reliefs from the defendant: -

(a) A declaration that defendant's conduct of punching plaintiff in his face with the defendant's fist amounts to an unlawful illegal yet unjustified assault and battery on plaintiff.

(b) An order directed at defendant restraining defendant perpetually from coming within fifty (50) metres of plaintiff's person.

(C) An order directed at defendant to pay to plaintiff general damages for the unlawful yet unjustified assault and battery on plaintiff in the sum of Sixty Thousand Ghana Cedis (GHC60,000.00).

The plaintiff claimed that the defendant inflicted the alleged assault and battery on him some time on the 30th July 2019 at the car park near the Ministries Police Station, Accra after they had attended court proceedings at the Law Court Complex on the afore mentioned date. The defendant denied any liability for the claims made by the plaintiff and stated that it was rather the plaintiff who accosted him at a car park on the day of the incident by holding his neck aggressively and forcibly took his cell

phone from his breast pocket and smashed it on the ground without any provocation.

At the close of pleadings the parties filed their respective issues for determination. The plaintiff's issues were as follows:-

(a) Whether or not sometime on 30th July 2019 defendant publicly assaulted and battered plaintiff without any justification?

(b) Whether or not plaintiff suffered physical harm/damages to his health, reputation and general wellbeing from the assault and battery he (plaintiff) suffered from the defendant?

(c) Whether or not defendant's assault and battery on plaintiff's person is unlawful/ illegal and an unjustified infraction of plaintiff's rights?

(d) Whether or not plaintiff physically assaulted and battered defendant sometime on 30th July 2019 thereby causing damage to defendant's shirt?

(e) Whether or not defendant's assault and battery at plaintiff was as a result of provocation on the part of plaintiff?

(f) Whether or not plaintiff is entitled to any and/or all of the reliefs he seeks against defendant?

(g) Any other issues arising out of the pleadings of the parties.

The defendant's additional issues were as follows:

(1) Whether or not the plaintiff aggressively and menacingly run into the defendant, held the defendant by the neck and forcibly snatched defendant's cell phone from defendant's breast pocket and in the process, tore the breast pocket of the defendant's shirt which cell phone plaintiff smashed on the ground and damaged same without any provocation.

(2) Whether or not plaintiff subsequently tried to engage the defendant in a fisticuffs and the defendant had to parry the plaintiff's punches.

(3) Whether or not the plaintiff and Daniel Ablorh Mensah had earlier on 4th May 2015 lodged false complaint against the defendant by way of a petition to the Police Intelligence and

Professional Standards Unit (PIPS) which petition was duly investigated by PIPS and found out to be false and without merit.

(4) Whether or not the instant suit is an attempt by the plaintiff at a judicial equalization as the defendant obtained judgment against the plaintiff and other persons in suit no AL/44/2015 for the recovery of some sums of money compliance of which judgment the plaintiff and the other persons have been desperately trying to avoid.

PLAINTIFF'S CASE

According to the plaintiff, he is one of the defendants to an action commenced by the defendant at the Registry of the General Jurisdiction of the High Court, Accra and that the said action is entitled ***"Chief/Inspector Courage K. Agbanu v. Nii Okpelor Jacob Ablorh Mensah & others with suit no. AL/44/2015"***. He claimed that he attended court proceedings at the Law Court Complex in respect of that case on 30th July 2019 and after the said court hearing he headed towards a car park called Polo Club Car Park where he had earlier parked his car.

The plaintiff said he saw the defendant at the said car park and the defendant on noticing the plaintiff, began walking towards the plaintiff with his (defendant's) mobile phone in his hand. The plaintiff claimed the defendant was visibly filming him (the plaintiff) without his consent and /or permission or any lawful justification whatsoever and therefore he enquired

from the defendant why he was filming him because he felt the defendant's conduct was an intrusion on his privacy.

The plaintiff claimed that when he confronted the defendant about his conduct, the defendant got angry and attacked him without any justification whatsoever and that this happened in the presence of onlookers and passersby. He claimed he was publicly assaulted and battered by the defendant who punched him in the face with his bare fist and that this caused him to fall. The plaintiff also claimed that he suffered a deep cut on his left cheek as a result of the assault and battery inflicted on him by the defendant and that he lodged a complaint at the Ministries Police Station whereupon he was given a police medical form to attend hospital which he did.

The plaintiff further claimed that the defendant's assault and battery on him left him with a scar on his cheek which is now a deformity on his face. He also claimed that apart from the needless expense he incurred in seeking medical attention and care, he also suffered damage to his health, reputation as well as his general wellbeing with a further psychological and emotional damage as a result of the unjustified assault and battery the defendant inflicted on him.

The plaintiff therefore urged this court to restrain the defendant from coming within fifty (50) metres of plaintiff's person and to order the defendant to pay him general damages of GH¢60,000 for the unlawful/illegal yet unjustified assault and battery on the plaintiff's person.

DEFENDANT'S CASE

The defendant denied the allegations of assault and battery made against him by the plaintiff. He confirmed the existence of the case with suit no. AL/44/2015 in which the plaintiff herein and others are the defendants in the said suit. He stated that he had obtained judgment in the said suit against the plaintiff and the other defendants in the said suit and was in the process of executing that judgment.

The defendant continued to say that after the court proceedings on the 30th July 2019, he went to the Polo Club Car Park to take his car and drive away home. He said while he was at the car park he saw one Daniel Ablorh Mensah who was one of the defendants in suit no. AL/44/2015 and that the said Daniel Ablorh Mensah entered a blue Toyota FJ Cruiser 4 X 4 vehicle with registration no GR8130-12. He said he decided to take a picture of the said vehicle to transmit same to the Registrar of the High Court, General Jurisdiction so that the vehicle could be attached in satisfaction of the judgment debt in suit no. AL/44/2015. The defendant further stated that after he had taken the picture, the plaintiff herein appeared out of the blue, held him by his neck, and snatched his mobile phone out of his breast pocket which got torn and smashed his cell phone to the ground. He claimed the plaintiff threw punches at him which he parried. He claimed he also lodged a complaint at the Miniseries Police Station and was given a medical form to attend hospital.

ANALYSIS OF ISSUES

The general position of the law is that each party to the suit who alleges per their claim must adduce evidence on the facts and issues to be determined by the court to the prescribed standard set by the statute. The ***Evidence Act of 1975 (NRCD323)*** provides per its ***section 14*** as follows:

> ***"Except as otherwise provided by law, unless and until it is shifted, a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting"***

This principle of law has received judicial blessing as the Supreme Court pronounced on it in the case of Re***: Ashalley Botwe Lands, Adjetey Agbosu & others v. Kotey & others [2003-2004] SCGLR 420***. In the said judgment, the ***Supreme Court*** per ***Wood JSC*** (as she then was) at ***p.444*** stated,

> ***"It is trite learning that by the statutory provisions of the Evidence Decree 1975 (NRCD 323] the burden of producing evidence in any given case is not fixed but shifts from a party to party at various stages of the trial, depending on the issues asserted and or denied"***

Also in the case of ***Ababio vrs Akwasi, iv [1994-1995] GBR 774 the Supreme Court per Aikins JSC*** expounded the position of the law on the burden of proof and of persuasion thus,

> ***"The general principle of law is that it is the duty of a plaintiff to prove what he alleges. In other words, it is the party who raises***

> ***in his pleadings an issue essential to the success of his case who assumes the burden of proving it…. The burden only shifts to the defence to lead sufficient evidence to tip the scales in his favor when on a particular issue, the plaintiff leads some evidence to prove his claim. If the defendant succeeds in doing this he wins, if not, he loses on that particular issue?"***

In the instant case before me, the plaintiff carries the burden of proof and of persuasion in respect of his allegations of assault and battery and this is to be determined on the preponderance of probabilities as defined by section 12 (2) of Act 323 mentioned supra.

The main issue to be determined is: ***Whether or not on the 30th July 2019, the defendant publicly assaulted and battered the plaintiff without any justification*****?**

The plaintiff's evidence on this issue is that he saw the defendant filming him with his mobile phone in the car park and he confronted the defendant who, in response, pounced on the plaintiff and assaulted and battered him (plaintiff). The plaintiff claimed he suffered a cut on his left cheek and he attended hospital after a police medical form had been issued to him. The plaintiff called no witness to corroborate his testimony. However he tendered in evidence the medical report he was given by the medical officer who treated him and a photograph of himself wearing a blood stained white shirt and spotting a plaster on his left cheek. The photo is marked as exhibit A and the medical report is marked exhibit B.

The defendant on the other hand in his evidence claimed that it was the plaintiff who attacked him without any provocation. The defendant claimed he also attended hospital after the incident with the plaintiff. He tendered in evidence a police report on the case as his exhibit 'B'. This report gives details of what transpired between the parties on the 30th July 2019. After the Miniseries Police had investigated the matter, the conclusion was that both the plaintiff and the defendant had engaged in a brawl at the car park and that the fight was started by the plaintiff herein and that both parties were to be charged and put before a court of law for criminal prosecution.

There is nothing in the plaintiff's evidence that supports his assertion that the defendant intruded on his privacy by filming him with defendant's mobile phone. The plaintiff's own testimony that he confronted the defendant for allegedly filming him leads this court to believe the police report in exhibit '3' that it was the plaintiff who initiated the fight that occurred that day.

The plaintiff in seeing the defendant holding his mobile, phone made the assumption without any basis that he was being filmed by the defendant and thus he confronted the defendant, leading to the altercation that happened that day. It was not the defendant who first accosted the plaintiff that day.

It is thus the finding of the fact by this court that what transpired between the plaintiff and the defendant on the 30th July 2019 was a brawl that was initiated by the plaintiff and therefore the plaintiff cannot be heard to say that he was unjustifiably assaulted and battered by the defendant on the said day.

REMAINING ISSUES

The Court is of the opinion that after making a determination of the main issue, the remaining issues are indeed of no relevance and therefore same will not be discussed.

CONCLUSION

After a careful consideration of all the evidence adduced by the parties, the court is of the opinion that the plaintiff has failed to establish his case on the balance of probabilities and therefore he is not entitled to the reliefs he seeks against the defendant. The case of the plaintiff is dismissed as same is without any merit. The court awards cost of GHC20,000.00 against the plaintiff in favour of the defendant.

(SGD.)

H/L ANANDA JULIANA AIKINS (MRS.)
JUSTICE OF THE HIGH COURT